

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 HOUSE JOINT
5 RESOLUTION 1089

By: Hilbert

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7
8 AS INTRODUCED

9 A Joint Resolution calling a Constitutional
10 Convention to alter, revise, or amend the present
11 Constitution of the State of Oklahoma or to propose a
12 new Constitution; fixing the time and place thereof;
13 providing for selection of delegates to the
14 Convention; providing requirements and restrictions
15 for eligibility; creating a Constitutional Convention
16 Commission; stating purpose; providing for
17 composition; providing for election of officers and
18 organization of the Constitutional Convention;
19 providing oath of office; providing for recall and
20 penalty for violation of oath; providing for
21 employment of staff; providing for rules of
22 procedure; providing for working draft to be
23 considered by the Constitutional Convention;
24 providing voting requirements for certain actions;
 providing for compensation of delegates; providing
 for payment of expenses of the Convention; providing
 for submission of constitutional changes to the
 voters of the state; providing for submission of this
 joint resolution to a vote of the people; providing
 ballot title; and directing filing.

23 WHEREAS, Section 2 of Article XXIV of the Oklahoma Constitution
24 requires that a proposal to hold a Constitutional Convention shall

1 be submitted to a vote of the people at least once every twenty (20)
2 years; and

3 WHEREAS, the last proposal providing for a Constitutional
4 Convention was submitted to a vote of the people March 17, 1970; and

5 WHEREAS, a State Question to eliminate the requirement that a
6 Constitutional Convention proposal be submitted to the people every
7 twenty (20) years was defeated at the General Election held November
8 8, 1994; and

9 WHEREAS, the original Constitutional Convention was comprised of
10 112 members, with 55 delegates from Indian Territory, 55 delegates
11 from Oklahoma Territory, and two members from Osage tribal land; and

12 WHEREAS, it is incumbent upon the Legislature to enact a law
13 providing for a Constitutional Convention and to submit said law to
14 a vote of the people; and

15 WHEREAS, in accordance with court decisions and Attorney General
16 opinions, it is necessary that said law provide the organization of
17 the Convention and the procedure to be followed by the Convention
18 and that said law be signed by the Governor.

19 NOW, THEREFORE, BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES
20 AND THE SENATE OF THE 2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

21 SECTION 1. There is hereby called a Constitutional Convention
22 for the purpose of altering, revising, or amending the current
23 Constitution, or to propose a new Constitution for the State of
24

1 Oklahoma, to be submitted to the people for their approval or
2 rejection.

3 SECTION 2. The Constitutional Convention shall convene on
4 Monday, January 5, 2027, not later than 5 P.M., in Oklahoma City at
5 the State Capitol.

6 SECTION 3. A. Delegates to the Convention shall be those
7 persons elected to and constituting the Oklahoma House of
8 Representatives and those members elected to and constituting the
9 Oklahoma State Senate.

10 B. No member of Congress from this state or person holding any
11 other federal office shall be eligible to be a delegate.

12 C. There is hereby created a Constitutional Convention
13 Commission. The Constitutional Convention Commission shall be
14 composed of the Governor or a designee, the Chief Justice of the
15 Supreme Court or a designee, the Speaker of the House of
16 Representatives or a designee, the President Pro Tempore of the
17 Senate or a designee, a member of the House of Representatives
18 appointed by the Speaker of the House of Representatives, and a
19 member of the Senate appointed by the President Pro Tempore of the
20 Senate. The members appointed by the Speaker of the House of
21 Representatives and the President Pro Tempore of the Senate shall
22 serve as cochairs of the Commission. The Commission shall conduct
23 public hearings prior to the delegate selection process to gather
24

1 input from the public for issues to be addressed by the
2 Constitutional Convention.

3 SECTION 4. A. The Secretary of State shall call the
4 Constitutional Convention to order and preside until one of the
5 delegates is chosen President of the Constitutional Convention by
6 vote of the Convention.

7 B. Prior to the selection of a President, the delegates shall
8 take the following oath to support the Constitution of the United
9 States and to faithfully discharge their duties as delegates:

10 "I do solemnly swear or affirm that to the best of my abilities,
11 I will, as a delegate to the State Constitutional Convention, uphold
12 the Constitution and laws of the United States of America and the
13 State of Oklahoma. I will not vote to allow consideration of or to
14 approve any unauthorized amendment proposed for ratification to the
15 Oklahoma Constitution."

16 Any delegate who violates the oath contained in this subsection,
17 shall be recalled and replaced by the appointing authority and, upon
18 conviction, shall be guilty of a misdemeanor.

19 C. The Convention may employ staff necessary to assist the
20 delegates in performing their duties.

21 D. After choosing a President, the Convention shall organize
22 itself and select such other officers as it deems necessary.

23 E. The Convention may establish rules for the Convention. Any
24 parliamentary question not provided for by the Oklahoma Constitution

1 or the rules of the Constitutional Convention shall be governed by
2 Mason's Manual of Legislative Procedure.

3 F. A simple majority of the delegates shall constitute a quorum
4 to transact business. A simple majority of the delegates shall be
5 necessary for the adoption of any measure.

6 G. The original Constitution and all amendments added by the
7 initiative petition process or the legislative referendum process
8 which are in effect not later than May 28, 2028, shall be the
9 working draft for consideration by the Constitutional Convention.
10 No article of the Constitution shall be reviewed by the Convention
11 for possible alterations, revisions, or amendments, unless the
12 motion to do so receives the approval of two-thirds (2/3) of the
13 delegates. Thereafter, any proposed alteration, revision, or
14 amendment to an article shall require a simple majority for
15 adoption. To reverse any previous action taken by the Convention
16 pertaining to an alteration, revision or amendment, two-thirds (2/3)
17 of the delegates must approve the motion.

18 SECTION 5. The Constitutional Convention shall adjourn sine die
19 no later than Friday, May 28, 2028 at 5 P.M.

20 SECTION 6. The delegates to the Constitutional Convention shall
21 receive no compensation but shall receive reimbursement for mileage
22 and per diem as provided in the State Travel Reimbursement Act for
23 the time that the Constitutional Convention is in session up to a
24 maximum of ninety (90) legislative days.

SECTION 7. All expenses incurred by the Constitutional Convention acting within the scope of authority as provided for in this resolution and all expenses of holding the election for adoption or rejection of any alteration, revision, or amendment of the current Constitution or proposed new Constitution shall be paid for by the state; and it is made the express duty of the Legislature to provide for payment of the expenses.

SECTION 8. The delegates shall be subject to all rules and regulations promulgated by the Ethics Commission and all state and federal laws to which legislators are subject.

SECTION 9. Any alteration, revision, or amendment of the current Constitution or new Constitution proposed by the Constitutional Convention shall be submitted to the electors of the state for adoption or rejection at the General Election to be held in November, 2028.

SECTION 10. After approval by the Governor, this resolution shall be submitted to the people by the Secretary of State for their approval or rejection at the next General Election.

SECTION 11. The Ballot Title for the proposed question to be put before the people as provided herein shall be in the following form:

BALLOT TITLE

Legislative Referendum No. _____ State Question No. _____

THE GIST OF THE PROPOSITION IS AS FOLLOWS:

1 This measure calls a state Constitutional Convention. It would
2 begin on January 5, 2027. It would end by May 28, 2028. It
3 would review the State Constitution. It could alter, amend, or
4 revise the Constitution. It could propose a new State
5 Constitution. There would be 149 delegates. All of the
6 delegates would be members of the State Legislature. Delegates
7 would be paid for travel expenses for each day that the
8 Convention meets. Payment is limited. Delegates can be paid
9 for no more than ninety legislative days. Any change in the
10 Constitution or new Constitution must be presented for approval
11 to state voters. This would happen at the General Election in
12 November, 2028.

13 SHALL THE PROPOSAL BE APPROVED?

14 FOR THE PROPOSAL — YES _____

15 AGAINST THE PROPOSAL — NO _____

16 SECTION 12. The Chief Clerk of the House of Representatives,
17 immediately after the passage of this resolution, shall prepare and
18 file one copy thereof, including the Ballot Title set forth in
19 SECTION 11 hereof, with the Governor, one copy with the Secretary of
20 State and one copy with the Attorney General.

21
22 DIRECT TO CALENDAR.
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